

## **MUTUAL ARBITRATION AGREEMENT**

1. Agreement to Arbitrate Disputes. I agree and acknowledge that “KIMCHI LAS VEGAS INC, LLCK INC, CHUNG AND KLL INC, YAMA CHEYENNE LLC, AND YAMA FREMONT LLC” henceforth referred to as “Company” and I will utilize binding arbitration to resolve any disputes that may arise between us, as set forth more fully in the sections below.

A. Company and I mutually agree that any claim, dispute, and/or controversy that either I may have against Company (or its owners, shareholders, parents, subsidiaries, affiliates, directors, officers, managers, employees, agents, or parties affiliated with their employee benefit and health plans) or that Company may have against me, arising from, related to, or having any relationship or connection whatsoever with my seeking employment with, employment by, separation from employment, or any other association with Company shall be submitted to, resolved, and determined exclusively by binding arbitration, which is governed by the Federal Arbitration Act (9 U.S.C. §§ 1, et seq.) (“FAA”) and evidences a commercial transaction, which shall to be administered by the American Arbitration Association pursuant to its applicable Rules, which are available on the AAA’s website ([www.adr.org](http://www.adr.org)). In the event of a conflict between AAA’s Rules and this Agreement, this Agreement shall govern. To the extent the FAA is inapplicable, this Agreement shall be governed by the arbitration law of the state where I primarily performed services for the Company. Included within the scope of this Agreement are all disputes, whether based on tort, common law, contract, statute (including, but not limited to, any claims of discrimination and harassment, whether they be based on Title VII of the Civil Rights Act of 1964, as amended, or any other similar state, local, or federal law or regulation), equitable law, or otherwise. If the FAA does not apply, this Agreement shall be governed by the arbitration laws of the state of Nevada.

B. The following claims are excluded from arbitration: (i) administrative claims by me for workers’ compensation or unemployment benefits; (ii) claims for benefits under a Company benefit plan or program that provides its own process for dispute resolution and arbitration of disputes; (iii) claims by Company or me for provisional or emergency relief in court until arbitration can be initiated; (iv) claims that an applicable federal statute expressly states cannot be arbitrated or subject to a pre-dispute arbitration agreement; and (v) actions to enforce this Agreement, compel arbitration, or enforce or vacate an arbitrator’s award under this Agreement. Nothing herein, however, shall prevent me from filing charges with, pursuing relief from, or cooperating in proceedings before the Equal Employment Opportunity Commission or any similar federal, state or local agency. Further, nothing herein prevents or excuses a party from satisfying any conditions precedent and/or exhausting administrative remedies under applicable law before bringing a claim in arbitration. This Agreement also does not prevent or prohibit me from reporting, communicating about, or disclosing claims for discrimination, harassment, retaliation, or sexual abuse.

C. In addition to any other requirements imposed by law, the arbitrator selected shall be a retired Judge or otherwise qualified individual from a panel proposed by AAA to whom the parties mutually agree, and shall be subject to disqualification on the same grounds as would apply to a judge of such court. The arbitrator shall have the authority to consider and rule on dispositive motions, such as motions to dismiss or motions for summary judgment in accordance with the standards and burdens generally applicable to such motion in federal district court, except that the arbitrator may establish

appropriate and less formal standards and procedures for such motions at the arbitrator's discretion consistent with the expedited nature of arbitration proceedings. The arbitrator may issue subpoenas to compel the attendance of witnesses at the arbitration hearing and to compel the production of documents during discovery and shall do so upon reasonable request of either party. Resolution of the dispute shall be based solely upon the law governing the claims and defenses pleaded, and the arbitrator may not invoke any basis (including but not limited to notions of "just cause") other than such controlling law. The arbitrator may award any remedy to which a party is entitled under applicable law for an individual claim. Awards shall include the arbitrator's written reasoned opinion.

D. **Class and Collective Action Waivers.** Company and I agree to bring any claim on an individual basis and not as a class or collective action. Accordingly,

(i) There will be no right or authority for any dispute to be brought, heard or arbitrated as a class action and the arbitrator will have no authority to hear or preside over any such claim ("Class Action Waiver"). The Class Action Waiver shall be severable from this Agreement if there is a final judicial determination that the Class Action Waiver is invalid, unenforceable, unconscionable, void or voidable. In such instances, the class action must be litigated in a civil court of competent jurisdiction – not in arbitration.

(ii) There will be no right or authority for any dispute to be brought, heard or arbitrated as a collective action and the arbitrator will have no authority to hear or preside over any such claim ("Collective Action Waiver"). The Collective Action Waiver shall be severable from this Agreement if there is a final judicial determination that the Collective Action Waiver is invalid, unenforceable, unconscionable, void or voidable. In such instances, the collective action must be litigated in a civil court of competent jurisdiction – not in arbitration.

**Entire Agreement.** This is the entire agreement between Company and me regarding dispute resolution, and this Agreement supersedes any and all prior agreements regarding these issues. It is further agreed and understood that any agreement contrary to the foregoing must be entered into, in writing, by the President of Company to be binding against Company. No supervisor or representative of Company, other than the President of Company, has any authority to enter into any agreement contrary to the foregoing. **Oral representations made before or after I am hired do not alter this Agreement.**

3. **Severance and Enforceability.** If any term, provision, or portion of this Agreement is declared void or unenforceable, it shall be severed, and the remainder of this Agreement shall be enforceable. **However, this Agreement prohibits the arbitrator from consolidating the claims of others into one proceeding, to the maximum extent permitted by law. This means an arbitrator shall hear only individual claims and is prohibited from fashioning a proceeding as a class, collective, representative, or group action or awarding relief to a group of claimants or employees in one proceeding, to the maximum extent permitted by law.** Additionally, the parties agree that if a party brings an action that includes both claims subject to arbitration under this Agreement and claims that by law are not subject to arbitration, all claims that by law are not subject to arbitration shall be stayed until the claims subject to arbitration under this Agreement are fully arbitrated. The parties further agree that in such a situation, the arbitrator's decision on the claims subject to arbitration,

including any determinations as to disputed factual or legal issues, shall be entitled to full force and effect in any separate lawsuit on claims that by law are not subject to arbitration.

**Please read this Arbitration Agreement carefully. I may also want to consult my own private legal counsel. This is an important document that affects my legal rights.**

By signing below, I agree to be bound to this Arbitration Agreement, as does the Company. I understand that, as more fully set forth above, I and Company must arbitrate any and all covered disputes and legal claims and I and Company are waiving the right to a jury trial or to sue in court.

**THE PARTIES HAVE READ AND UNDERSTAND THIS AGREEMENT.**

\_\_\_\_\_  
Employee's Signature

\_\_\_\_\_  
Employee's Name

\_\_\_\_\_  
Date

\_\_\_\_\_  
Company's President Signature

\_\_\_\_\_  
Company's President's Name

\_\_\_\_\_  
Date

CONFIDENTIAL